

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents and Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,

Third-Party Respondent.

**THIRD-PARTY RESPONDENT'S INITIAL RESPONSE TO RESPONDENTS' MOTION
FOR ALTERNATIVE SERVICE**

HOHENSTEIN & PARKINSON, LLP
James H. Hohenstein
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*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

PRELIMINARY STATEMENT

Third-Party Respondent Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. (“Third-Party Respondent” or “SEC”), having specially appeared by its undersigned attorneys for the limited purpose of filing SEC’s Motion to Dismiss the Third-Party Complaint of Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively, “OOCL” or “Respondents”)(Doc. No. 32), respectfully submits this Initial Response to the Motion for Alternative Service filed by Respondents on June 24, 2025 (“OOCL Alternative Service Motion”)(Doc. No. 56). SEC acknowledges that this Initial Response is an extraordinary filing, however, SEC submits it is justified by the circumstances of this case.

By filing this Initial Response, SEC does not intend to make a general appearance in this matter, nor does SEC intend to waive its Motion to Dismiss (Doc. No. 32) on the grounds of insufficiency of the service of process, which Motion is currently pending before the Presiding Officer.

INTRODUCTION

On December 12, 2024, OOCL filed a Third-Party Complaint against SEC (Doc. No. 20). On January 9, 2025, undersigned counsel filed a Notice of Special Appearance, specifically noting SEC’s intention to assert a defense of the insufficiency of the service of process (Doc. No. 25). On January 29, 2025, SEC filed its Motion to Dismiss on that ground (Doc. No. 32). In due course, OOCL filed an opposition (Doc. No. 33) to which SEC replied on February 20, 2025 (Doc. No. 36). As such, for over four months SEC’s Motion to Dismiss was and is *sub judice*.

On June 23, 2025, the Presiding Officer issued an Order Setting Status Conference (Doc. No. 52) at 10:00 a.m. on June 25, 2025, at which counsel for SEC has been expressly directed to

appear. The topics for discussion at the Status Conference include “service pursuant to the Hague Convention, possible waiver of formal service...” *Id.*

By email transmitted at 09:39 a.m. this morning (June 24, 2025), OOCL’s counsel communicated the following to undersigned counsel:

Although we believe that your client in this matter has already been served, I write to request that you agree to expedite matters by accepting service of the third-party complaint against your client in the above-referenced action or waiving service on your client’s behalf. If not, we plan to file today a motion asking the Presiding Officer to permit alternative service. Please let me know your position by 2 pm today, so that we can, if need be, file the motion before COB.

In response, at 11:56 a.m. today (June 24, 2025), undersigned counsel replied:

I have received your email.

Given the time of receipt (and in view of the difference in time between New York and Korea), I am not in a position to obtain the instructions of my client prior to 2 p.m. today.

That said, I can say that I have no instructions from SEC to waive or accept service nor, for my part, do I think such instructions would be issued.

A copy of this email exchange is attached hereto as Exhibit A.¹

STATEMENT

Initially, SEC notes that there is no “Meet and Confer” certification in the OOCL Alternative Service Motion as required by 46 C.F.R. § 502.71(a).

As alleged by OOCL and acknowledged by SEC (Doc. No. 32 at 3), SEC is a Korean corporate entity with its principal place of business in Korea. Currently, Korea is thirteen (13) hours ahead of the U.S. East Coast, i.e., 09:39 a.m. in Washington, D.C. and New York is 10:39 p.m. in Korea; and, 2 p.m. here on a Tuesday is 3 a.m. (the following day) in Korea.

¹ SEC notes that Exhibit B to the OOCL Alternative Service Motion is incomplete as it only includes undersigned counsel’s reply.

SEC respectfully submits that it is unfair for OOCL to expect that SEC's counsel could provide an informed and meaningful response under this timeline. Effectively, this meant that any "meet and confer" (if that what was intended by OOCL's counsel's email) was not effective given the impossible timeline the communication required.

Moreover, as noted above, SEC's Motion to Dismiss has been fully briefed and pending for over four months thus establishing the tardy nature of the filing of the OOCL Alternative Service Motion.

It stands to reason that the OOCL Alternative Service Motion has been filed in view of the Status Conference set for tomorrow.

However, it would be manifestly inappropriate to address the substance of the motion in the absence of SEC having the full opportunity to consider the motion and respond accordingly. As such, SEC respectfully requests that the topics set out in the OOCL Alternative Service Motion not be addressed during the Status Conference.

CONCLUSION

Accordingly, pursuant to 46 C.F.R. §§ 502.69 and 502.71, Third-Party Respondent SEC respectfully moves for an Order:

1. Declining to address the substance of the OOCL Alternative Service Motion at the Status Conference set for June 25, 2025;
2. Granting SEC all such other and further relief as may be just and proper.

Dated: June 24, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein

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385 South End Avenue, #5K
New York, NY 10280
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*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

CERTIFICATE OF SERVICE

I hereby certify that I have on this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow – *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Mills Black LLP
Counsel for Complainants
 - a. Peter F. Black
pblack@millsblack.com
 - b. H. Allen Black
hablack@millsblack.com
4. Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondents and Third-Party Complainants
 - a. Eric C. Jeffrey
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 - b. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
5. Cozen O'Connor, P.C.
Counsel for Respondents and Third-Party Complainants
 - a. Wayne R. Rohde
wrohde@cozen.com
 - b. Christopher Raleigh
craleigh@cozen.com

Dated: June 24, 2025

By: /s/ James H. Hohenstein

James H. Hohenstein
Hohenstein & Parkinson, LLP

*Counsel to Samsung Electronics
Co., Ltd. s/h/a Samsung
Electronics Company, Ltd.*

**SEC's Initial Response to OOCL's Motion
for Alternative Service**

Docket No. 24-17

Exhibit A

Jim Hohenstein

From: Jim Hohenstein
Sent: Tuesday, June 24, 2025 11:56
To: Eric Jeffrey
Cc: Allen Black; Imran Shaukat; Schwartz, Rachel; pblack@millsblack.com; Rohde, Wayne; Christopher Raleigh; Sobotta, Kathryn; Rebecca Fenneman; Nicholas Webb; Kaya Massey
Subject: RE: Docket No. 24-17: Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd

Dear Eric,

I have received your email.

Given the time of receipt (and in view of the difference in time between New York and Korea), I am not in a position to obtain the instructions of my client prior to 2 p.m. today.

That said, I can say that I have no instructions from SEC to waive or accept service nor, for my part, do I think such instructions would be issued.

Best regards, Jim

Jim Hohenstein
Hohenstein & Parkinson, LLP
385 South End Avenue, #5K
New York, NY 10280
email: jim.hohenstein@hplawny.com
telephone: (917) 873-2528
www.hplawny.com

From: Eric Jeffrey <ejeffrey@jeffreyfenneman.com>
Sent: Tuesday, June 24, 2025 09:39
To: Jim Hohenstein <jim.hohenstein@hplawny.com>
Cc: Allen Black <hablack@millsblack.com>; Imran Shaukat <ishaukat@millsblack.com>; Schwartz, Rachel <RSchwartz@cozen.com>; pblack@millsblack.com; Rohde, Wayne <wrohde@cozen.com>; Christopher Raleigh <craleigh@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>; Rebecca Fenneman <rfenneman@jeffreyfenneman.com>; Nicholas Webb <nwebb@jeffreyfenneman.com>; Kaya Massey <kmassey@jeffreyfenneman.com>
Subject: Docket No. 24-17: Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Company, Ltd

Dear Mr. Hohenstein,

Although we believe that your client in this matter has already been served, I write to request that you agree to expedite matters by accepting service of the third-party complaint against your client in the above-referenced action or waiving service on your client's behalf. If not, we plan to file today a motion asking the Presiding Officer to permit alternative service. Please let me know your position by 2 pm today, so that we can, if need be, file the motion before COB.

Although we have copied counsel for SEA on this email, they need not respond as SEA is not a party to the third-party complaint, so have nothing to say on this matter, and they do not, to our knowledge, represent SEC.

Best regards,

Eric

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Eric C. Jeffrey

Principal

Jeffrey/Fenneman Law + Strategy PLLC

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